

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2025CUWT056925: STEVE RANDALL vs NATREN INC

08/11/2026 in Department 43

Motion to Disqualify Counsel Tamineh Roshanian and Roshanian Payman PC as Counsel

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Plaintiff's Motion to Disqualify Counsel

Tentative Ruling: Plaintiff's Motion to Disqualify Counsel is GRANTED.

The First Amended Complaint alleges the direct involvement of Defendant's counsel Tamineh Roshanian in the dispute. (FAC §§11,14, 20, 24-27, 33, and 70). The fact that others might be able to testify to some of the issues and documents does not diminish Ms. Roshanian's presence as a percipient witness and the high likelihood that her testimony is "genuinely needed." (See *Doe v. Yim* (2020) 55 Cal.App.5th 573, 583, citing *Smith, Smith & Kring v. Superior Court* (1997) 60 Cal.App.4th 573, 580-581. Defendant Natren Inc. has not consented or waived objection to Ms. Roshanian's dual role. (Rules Prof. Conduct, rule 3.7(a)(3).) However, even if there was consent or waiver, the court retains discretion to disqualify a lawyer who both testifies and serves as an advocate, to protect the trier of fact from being misled or the opposing party from being prejudiced. (See, e.g., *Lyle v. Superior Court* (1981) 122 Cal.App.3d 470.) There is a substantial risk that the trier of fact could be misled into accepting argument or commentary as evidence based on Ms.

Roshanian's percipient knowledge, particularly when a jury trial is demanded by one of parties. (See *Doe* at 585.)

The court is also concerned about the integrity of the judicial process in allowing an attorney to act in a dual role as advocate and witness. The court does not find that this motion (brought within seven months of the filing of the action) was brought tactically or unfairly. Nor does the court see any reasonable possibility of sequestering the advocate given the small size of Ms. Roshanian's firm. The disqualification applies to bar Ms. Roshanian and members of her firm from participating as advocates in this consolidated matter.

Moving party is ordered to serve notice of the Court's ruling.